

Draft Response — Entry ENT-3979

|                   |                                                                            |
|-------------------|----------------------------------------------------------------------------|
| POSITION          | Concede 8513.10.40 — per the rationale memo written at entry               |
| LEGAL FRAME       | Section XVI, Note 3 — principal function is illumination                   |
| PRECEDENT         | NY N305672 (controlling) · NY N327431 (distinguished)                      |
| CORRECTIVE ACTION | Tender +\$1,700 this entry · ~\$19K across 11 entries · no-penalty request |
| EXHIBITS          | A spec · B photos · C cost breakdown · D packaging · E rationale memo      |